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Exempt from filing fees per Government Code § 6103.

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI,

Petitioner,

v.

CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the California Highway Patrol Dublin Area; GARY PAUL, in his official capacity as Lieutenant of the of the California Highway Patrol Dublin Area; ERIC DUTRA, in his official capacity as Sergeant of the California Highway Patrol Dublin Area; and DOES 1 through 10, inclusive,

Respondents.

Case No. 26CV191136

RESPONDENT CALIFORNIA HIGHWAY PATROL'S DEMURRER TO PETITION FOR WRIT OF MANDATE; NOTICE OF HEARING

Date: August 28, 2026
Time: 9:00 a.m.
Dept: 25
Judge: The Honorable Jenna Whitman
Trial Date: Not set
Action Filed: May 29, 2026

Reservation Number: 811363998599

NOTICE OF HEARING ON DEMURRER TO PETITON FOR WRIT OF MANDATE

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that on August 28, 2026 at 9:00 a.m., in Department 25 of this Court, located at 1221 Oak Street, Oakland, CA 94612, the demurrer of Respondent California Highway Patrol to the Petition for Writ of Mandate of Petitioner Brendan Ngehsi Newanforbi, served and filed with this notice, will be heard.

The demurrer is based on this notice, the memorandum in support, the accompanying declaration and exhibits, the files and records in this action, and any further evidence and argument that the Court may receive at or before the hearing.

Dated: July 10, 2026

Respectfully submitted,

ROB BONTA
Attorney General of California
MARK R. BECKINGTON
Supervising Deputy Attorney General

/s/ Vanessa Ing
VANESSA ING
Deputy Attorney General
Attorneys for Respondent
California Highway Patrol

NOTICE OF DEMURRER TO PETITON FOR WRIT OF MANDATE

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

Respondent California Highway Patrol demurs generally to the Petition for Writ of Mandate on the ground that the petition does not state facts sufficient to constitute a cause of action. (*See* Code Civ. Proc., § 430.10, subd. (e).)

Respondent separately and specifically demurs to each cause of action alleged in the Petition for Writ of Mandate on the following grounds:

Demurrer to the First Cause of Action

1. Respondent demurs to the First Cause of Action for "Writ of Mandate (Code Civ. Proc. § 1085) Failure to Perform Mandatory Duty Under Penal Code Section 679.10(b)" on the ground the cause of action does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).)

Demurrer to the Second Cause of Action

2. Respondent demurs to the Second Cause of Action for "Writ of Mandate (Code Civ. Proc. § 1085) Failure to Perform Ministerial Duty Under Penal Code Section 679.10(g) (Reason-Giving Requirement)" on the ground the cause of action does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).)

Demurrer to the Third Cause of Action

3. Respondent demurs to the Third Cause of Action for "Writ of Mandate (Code Civ. Proc. § 1085) Failure to Apply the Rebuttable Presumption of Helpfulness Under Penal Code Section 679.10(h)" on the ground the cause of action does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).)

Demurrer to the Fourth Cause of Action

2. Respondent demurs to the Fourth Cause of Action for "Declaratory Relief (Code Civ. Proc. § 1060) Facial Deficiency of the April 20, 2026 Denial and Construction of Penal Code Section 679.10" on the ground the cause of action does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).)

WHEREFORE, Respondent California Highway Patrol respectfully requests:

1. That the Court sustain this demurrer and the demurrers stated herein.

2. Such other and further relief as the Court deems just and proper.

Dated: July 10, 2026

Respectfully submitted,

ROB BONTA
Attorney General of California
MARK R. BECKINGTON
Supervising Deputy Attorney General

/s/ Vanessa Ing
VANESSA ING
Deputy Attorney General
Attorneys for Respondent
California Highway Patrol

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45140825

DECLARATION OF SERVICE BY E-MAIL and U.S. MAIL

Case Name: ***Newanforbi, Brendan Ngehsi v. California Highway Patrol, et al.***
Case No.: **26CV191136**

I declare:

I am employed in the Office of the Attorney General, which is the office of a member of the California State Bar, at which member's direction this service is made. I am 18 years of age or older and not a party to this matter. My business address is: 455 Golden Gate Avenue, Suite 11000, San Francisco, CA 94102-7004. My electronic service address is Darcy.Woo@doj.ca.gov. I am familiar with the business practice at the Office of the Attorney General for collection and processing of correspondence for mailing with the United States Postal Service. In accordance with that practice, correspondence placed in the internal mail collection system at the Office of the Attorney General is deposited with the United States Postal Service with postage thereon fully prepaid that same day in the ordinary course of business.

On July 10, 2026, I served the attached

- **RESPONDENT CALIFORNIA HIGHWAY PATROL'S DEMURRER TO PETITION FOR WRIT OF MANDATE; NOTICE OF HEARING**
- **MEMORANDUM OF POINTS AND AUTHORITIES**
- **DECLARATION OF VANESSA ING REGARDING MEET AND CONFER UNDER CODE CIV. PROC. § 430.41**
- **[PROPOSED] ORDER SUSTAINING DEMURRER TO PETITION FOR WRIT OF MANDATE**

by transmitting a true copy via electronic mail. In addition, I placed a true copy thereof enclosed in a sealed envelope, in the internal mail system of the Office of the Attorney General, addressed as follows:

Brendan Ngehsi Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204
E-Mail Address: bnn.cdl@gmail.com
Petitioner, In Pro Per

I declare under penalty of perjury under the laws of the State of California and the United States of America the foregoing is true and correct and that this declaration was executed on July 10, 2026, at San Francisco, California.

D. Woo
Declarant

dw
Signature

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